

STATE OF NEW YORK

1755--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 14, 2025

Introduced by M. of A. REYES, HEVESI, SIMON, MEEKS, GONZALEZ-ROJAS, SIMONE, OTIS, CUNNINGHAM, RAGA, CLARK, DINOWITZ, SHIMSKY, SHRESTHA, SEAWRIGHT, STIRPE, JACKSON, LUNSFORD, RIVERA, GALLAGHER, ZACCARO, TAYLOR, DE LOS SANTOS, GIBBS, FORREST, TAPIA, BICHOTTE HERMELYN, LEVENBERG, DAVILA, KIM, MITAYNES, GLICK, ROMERO, COLTON, ANDERSON, BRONSON, HOOKS, WRIGHT, VALDEZ, COOK, MORENO, LEE -- read once and referred to the Committee on Social Services -- recommitted to the Committee on Social Services in accordance with Assembly Rule 3, sec. 2 -- reported and referred to the Committee on Ways and Means -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the social services law, in relation to providing internet access to all individuals residing in temporary housing; and to amend the New York state urban development corporation act, in relation to the ConnectAll digital equity grant program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 17 of the social services law is amended by adding
2 a new subdivision (m) is added to read as follows:

3 (m) require that all temporary housing facilities shall provide access
4 to high-speed broadband internet service and WiFi service to all indi-
5 viduals residing in such temporary housing. The WiFi service shall be
6 made available in private and common areas accessible to residents.
7 Such shelter shall have at least one router and at least one modem, or
8 any technological equivalent that performs the function of providing an
9 area with high-speed broadband internet service. This subdivision shall
10 not apply to any temporary housing facility located within an area of
11 the state which is unserved by, or does not have access to, broadband
12 internet service. For the purposes of this subdivision, the term "high-
13 speed broadband internet service" means internet service with download
14 speeds of at least one gigabit per second and upload speeds of at least

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 one gigabit per second, or if such speeds are not available the maximum
2 download and upload speeds commercially available within the local
3 social services district. The term "WiFi service" means access to high-
4 speed broadband internet through wireless router which connects to the
5 internet by wire or cable. For purposes of this subdivision, temporary
6 housing shall include but not be limited to, shelters for adults, shel-
7 ters for adult families, small-capacity shelters, shelters for families
8 with children, domestic violence shelters, runaway and homeless youth
9 shelters, shelters in hotels or shelters for refugees. Each temporary
10 housing facility shall submit their plan to provide internet access
11 pursuant to this subdivision to the department for oversight and
12 approval within one year of the effective date of this subdivision.
13 Temporary housing facilities shall implement and comply with such plans
14 within one year of such approval.

15 (1) (i) A temporary housing facility shall not use, disclose, sell,
16 retain, or permit access to the personal information pertaining to a
17 person residing in temporary housing obtained in the course of providing
18 internet access except as required to provide such access without regard
19 to content, application, service, or use of a non-harmful device, or to
20 respond to a warrant or subpoena issued by a court of competent juris-
21 isdiction.

22 (ii) For the purposes of this subdivision, personal information shall
23 mean information that directly or indirectly identifies, relates to,
24 describes, is capable of being associated with, or could reasonably be
25 linked to a particular individual, family, or personal device. Informa-
26 tion is reasonably linkable to an individual, family, or personal device
27 if it can be used on its own or in combination with other reasonably
28 available information, regardless of whether such other information is
29 held by the social services district or temporary housing facility, to
30 identify an individual, family, or a personal device.

31 (2) Any contract or agreement for internet access provided by an
32 internet service provider to a temporary housing facility shall have the
33 same terms and conditions, other than the requirements of this section,
34 as the regularly priced comparable internet plan offered by such inter-
35 net service provider.

36 (3) Local social services districts, temporary housing facilities, and
37 their employees and subcontractors shall not be required to actively
38 monitor or control the information accessed through the WiFi service and
39 shall not be held responsible for any illegal and/or criminal activities
40 committed, orchestrated, or organized through the provided WiFi access
41 by residents.

42 (4) Where credentials, such as a password and username, are necessary
43 to access WiFi, temporary housing facilities shall conspicuously display
44 such credentials in all public areas of the facility. Temporary housing
45 facilities need not disclose the credentials to access WiFi that is
46 reserved for staff or emergency service use.

47 (5) Where a temporary housing facility is a hotel or motel as defined
48 in section one hundred thirty-one-v of this chapter, and such temporary
49 housing facility provides WiFi access to patrons at no additional cost,
50 such facility shall provide WiFi to all residents, without discrimi-
51 nation at no additional cost.

52 § 2. Subdivision 10 of section 16-gg of section 1 of chapter 174 of
53 the laws of 1968, as added by section 2 of part MMM of chapter 58 of the
54 laws of 2022, is amended to read as follows:

55 10. ConnectAll digital equity grant program. The ConnectAll digital
56 equity grant program is hereby established to support individuals to

1 have the information technology capacity needed for full participation
2 in society and the economy, including the effective implementation of a
3 State Digital Equity Plan or any successor plan and to facilitate, fund,
4 or reimburse, the provision of internet access as provided in subdivi-
5 sion (m) of section 17 and section 153 of the social services law.

6 Grants issued pursuant to this program shall be awarded in a manner and
7 form as determined by the division consistent with all relevant federal
8 laws, codes, rules, and regulations associated with the federal Digital
9 Equity Act as established under the Infrastructure Investment and Jobs
10 Act. The division shall establish such State Digital Equity Plan and the
11 procedures to solicit, receive and evaluate proposals for the program
12 consistent with rules, regulations, or guidelines established by the
13 commissioner.

14 § 3. This act shall take effect immediately. Effective immediately,
15 the addition, amendment and/or repeal of any rule or regulation neces-
16 sary for the implementation of this act on its effective date are
17 authorized to be made and completed on or before such effective date.